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To: [ostp-ai-rfi](#)
Subject: [External] "AI Action Plan"
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Faisal D'Souza and Whom Else It May Concern:

Thank you for this opportunity to speak my mind about what to do to protect individual human persons, especially artists like myself, from Artificial Intelligence. My desire is for there to be parameters put in place both ethically and contractually to limit potential dangers that AI could create if it were to be used to slowly encroach upon our personal liberties and freedoms similar to what we all just experienced over the last four decades. With the threat of a surveillance state looming over us we need to look deeper at the negative impacts and/or unintended consequences that would take hold if not kept under careful check.

I know that recently the [CEO of Clearview AI, the startup that scraped billions of online face images, resigns](#) and we also lost the life of Suchir Balaji [They attacked Suchir Balaji and killed him: Mother of OpenAI whistleblower speaks out on Tucker Carlson - The Times of India](#) when he spoke out about the theft of copy written and otherwise protected data. We should be especially careful with what AI feeds on and need to keep in mind the old saying "Garbage in, garbage out."

Artificial Intelligence has caused great concern as it appears the already well-established copyright and anti-piracy laws have been completely disregarded with regards to the THEFT of the data to make these AI systems run. There should be a mass class action against any company who has taken/stolen without consent of the individual for any use of voice, image, name and likeness, or any such personal/private digital information used by ANY type of Artificial Intelligence. Remember Deep Seek stole the same information from Chat GPT. [Why DeepSeek's new AI model thinks it's ChatGPT | TechCrunch](#) Privacy, anonymity and the ability to make choices for oneself regarding one's personhood are of the utmost importance for the citizens of not only the United States of America, but in the world.

While I understand you wish to use AI to run biometric surveillance on the border to catch criminals, this absolutely cannot extend into the interior breaching the rights of the actual citizens of the United States. And while we are at it toll roads and surveillance on major roadways and highways are an illegal search and seizure as surveillance cameras and automatic license plate readers in public spaces are a violation of the fourth amendment, private property excluded as it is the purview of the owner. Police radar is also excluded as it does not surveil but measures speed. It is not equal protection under the law if the people who cannot afford to use the "FasTrak" lane are precluded from using a lane separated out just for the wealthy, as roads and bridges are public spaces and should be enjoyed equally by everyone.

We need to ensure that the use of AI does not lead us into the totalitarian "social credit score" system currently implemented by China. This type of system must NEVER be implemented to grant or limit access based on controlled behavior, here in the FREE country of the USA. It is bad enough that there were instances during the lockdowns of 2020 where groups or states attempted to implement and enforce what I call a Nazi style "show us your papers" "covid passport" this was a huge violation of our civil liberties and personal protections unlike anything we have ever

seen. This cannot and must not ever happen again. To use Artificial Intelligence to data mine for an integrated "health pass" or require anyone to submit to such a global surveillance system is again another violation of our fourth amendment rights.

We have already seen hundreds of thousands of feet of orange covered wire installed everywhere in California and elsewhere preparing for the 5G connection; it started on the first day of the infamous "15 days to slow the spread." This global plan of "15-minute cities", "Smart Cities" or "Intelligent Ecosystems" cannot be allowed to be forced upon Americans especially now with the implementation of generative AI.

On October 24, 2014, at the AeroAstro Centennial Symposium at the Massachusetts Institute of Technology in a one-on-one discussion with Elon Musk, even he warned that we were "summoning the demon" or messing with something we naively think we can control but in actuality we cannot. Suggesting we be "very careful with artificial intelligence" and thinks "there should be some regulatory oversight at a National and International level, to make sure we do not do something very foolish." [Elon Musk at the MIT AeroAstro Centennial Symposium](#) (@ 1 hour 7 minutes and 36 seconds in) I concur.

In closing, please find a Resolution that would make certain that our digital information remains our individual private property.

A Resolution to reaffirm and defend a citizen's right to privacy with regards to Artificial Intelligence.

Summary

This resolution aims to reaffirm the fact that Congress has a duty to protect the privacy rights of its citizens and must defend against widespread data collection by any and all entities, including but not limited to unions, technology companies, governments, employers, and third-party affiliates, especially with the use of Artificial Intelligence.

Whereas the United Nations admits, "In December 2021, at its second-ever special session, the World Health Assembly established an intergovernmental negotiating body (INB) to draft and negotiate a convention, agreement or other international instrument under the Constitution of the World Health Organization to strengthen pandemic prevention, preparedness and response." In actuality this new global accord would give over individual bodily autonomy and sovereignty to an entity outside of the United States of America to dictate the when, why and how a "future pandemic emergency" will be handled.

Whereas Article 2 Section 2 Clause 2 of the United States Constitution specifies how treaties can take place, which is corroborated by Article 6 clause 2. Any attempt by the W.H.O. to control healthcare through global health governance or policy is unenforceable under Federal and State law and any attempt to use Artificial Intelligence to collect or maintain data for such purposes is in violation of such clauses.

Whereas Article 14 section 1 clause 2 "No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws." The use of Artificial Intelligence to scrape and steal personal or public data from the internet is a direct and concrete violation of this Article as the digital information is innately considered the personal property of the subject in question.

Whereas the Genetic Information Nondiscrimination Act (GINA) was signed into law on May 21, 2008. GINA protects individuals who are legal citizens of the United States of America against discrimination based on their

genetic information in health coverage and employment. Any data collected again is the personal property of the person whose data is being collected. [The Genetic Information Nondiscrimination Act of 2008 | U.S. Equal Employment Opportunity Commission \(eoc.gov\)](#)

Whereas schemes to introduce passports have been touted around the world routinely using nonconsensual or coerced data tracking and data sharing, such as “Digital COVID-19 Vaccine Records”, therefore “CLEAR PASS”, “SMART Health Cards with a QR code”, “SarsCoV2 or Covid passports”, “Clear Secure”, “TSA Pre-check”, “verifiable vaccination credentials”, “electronic vaccine verification system”, “digital passport”, “Digital I.D.” and “Digital Health Technologies for Remote Data Acquisition” it is unethical to force or coerce vaccination and vaccination records, on paper, digital or otherwise, as a requirement to enter a building, go on to a set, or otherwise earn a living. Unethical treatment of civil rights and constitutional rights, are redressable by multiple laws, including especially the right to privacy in the Fourth and Fifth Amendments to the Constitution.

Whereas on April 6, 2021, the White House confirmed that it would not support a “system that requires Americans to carry a credential to show proof of vaccination,” and also stated “there will be no federal vaccinations database and no federal mandate requiring everyone to obtain a single vaccination credential,” citing concerns about privacy, security, and discrimination where these systems could be used against people unfairly. By law, government entities have no grant of authority to mandate, agree to, negotiate or approve the mandating of ‘vaccine passports’ or similar, nor to create or allow a condition of employment to be tested, vaccinated, or tracked by use of Artificial Intelligence by vaccination status.

Whereas Congress has a fiduciary duty to assert and defend a citizen’s rights to privacy, which are fundamental rights guaranteed by the United States Constitution, together with Federal and State law. Thus, Congress cannot enter into any agreement or conspire or collude with entities attempting to steal personal information especially with the use of Artificial Intelligence, including voice, image, name, likeness and/or use force or coercion to infringe upon rights of privacy.

NOW, THEREFORE BE IT RESOLVED that Congress issue a statement of support affirming the inalienable rights to privacy of its citizenry and back that up by creating binding legislation making it illegal to steal copy written, piracy protected as well as any other personal/private data which may be threatened by the use of Artificial Intelligence or otherwise and to guarantee personal bodily autonomy including name, image, likeness and voice, condemning any prerequisite to employment, or potential employment that infringes on those rights by coercion or force.

Statement in Support of Resolution

“The United States government has a duty to protect the privacy rights of all citizens and must therefore defend against the nonconsensual or coerced implementation and use of collection of medical records, medical testing, geolocation tracking, personal data collection and sharing, facial recognition collection, and the like done by Artificial Intelligence or otherwise.”

Submitted with permission from: Erik Nicolaisen, Cupid Hayes and Wednesday Ryan.

Thank you for your time and consideration,

Wednesday Ryan

California

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